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**EXECUTIVE OFFICE FOR IMMIGRATION REVIEW, LOS ANGELES
IMMIGRATION COURT**

In re Cisneros

Case No. A233-478-416

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

IJ Bernard T. Achterberg
Courtroom 8

Plaintiff Cisneros, Xiomara alleges as follows:

1. This action arises from asylum application (form i-589) involving U.S. Department of Homeland Security, which occurred on or about June 5, 2024.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant U.S. Department of Homeland Security is represented in this matter by Office of the Chief Counsel, U.S. Immigration and Customs Enforcement.
4. This action is timely under INA 208(a)(2)(B) (1 year from arrival); the limitations period runs through June 5, 2025.

FIRST CAUSE OF ACTION — Asylum Application (Form I-589) - Relief Requested

5. The foregoing allegations are realleged and incorporated by reference. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

SECOND CAUSE OF ACTION — Declaratory Relief (Code Civ. Proc. 1060)

6. The foregoing allegations are realleged and incorporated by reference. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: November 4, 2024

Alvarado & Sung LLP

By: _____
Miguel Teran
Attorneys for Cisneros, Xiomara